Data-Protection Rules by Jurisdiction (Search B)

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What this answers

This table shows, for Hong Kong, mainland China, Singapore and Taiwan, what the law says about sending personal data to an AI provider abroad. It supports the "data-control needs" half of Q1 and feeds Q5. Mainland China has the strictest rule, Hong Kong has no statutory limit in force, Singapore requires comparable protection abroad, and Taiwan's transfer rule is moving to a new regulator. A Traditional Chinese version is in the second tab. This is a research summary, not legal advice.

Coding scheme

- **status**: in_force, not_in_operation (law text exists but the commencement date has never been set), or passed_not_effective (enacted, effective date still to be set).
- **source_type**: primary_law (official statute site), regulator_page, law_firm_summary, or unofficial_translation. Law-firm summaries are second-hand and are marked as such.
- **read vs not read**: a page counts as read only if I opened it and its text came back. Pages that returned empty or were blocked are listed separately in Caveats.
- **Dates**: date shown on the source where there is one, plus my viewing date 2026-10-16.

Rules by place

Place	Law and regulator	Rule on sending personal data abroad	Status	AI-specific guidance	Penalty headline	Source type and links
Hong Kong	Personal Data (Privacy) Ordinance, Cap. 486. Regulator: PCPD	Section 33 (cross-border transfer) has been in the Ordinance since 1996 but is not in operation, so there is no statutory transfer restriction. PCPD issued voluntary Recommended Model Contractual Clauses on 12 May 2022 for transfers to another data user or to a data processor. A voluntary Greater Bay Area Standard Contract was extended to all sectors from November 2024.	not_in_operation (section 33). No bill or consultation on it as of Aug 2026 per one blog.	PCPD AI Model Personal Data Protection Framework (June 2024). PCPD checklist on employees' use of generative AI (2025). Neither is a statutory code.	No administrative fines. Ignoring an enforcement notice: up to HK$50,000 and 2 years' prison on first conviction. Mandatory breach notification does not exist.	law_firm_summary: Bird & Bird, model clauses, 2022, DLA Piper Hong Kong, modified 8 Mar 2026, Lewis Silkin, 6 May 2025, UPPERSETUP blog, 1 Sep 2026. Regulator pages found but not readable: see Caveats.

Place	Law and regulator	Rule on sending personal data abroad	Status	AI-specific guidance	Penalty headline	Source type and links
Mainland China	Personal Information Protection Law (PIPL). Regulator: Cyberspace Administration of China (CAC)	Article 38: a business need to send data abroad must meet a condition such as a CAC security assessment, certification or a CAC standard contract. Article 39: tell individuals about the overseas recipient and get separate consent. Article 40: operators of critical information infrastructure and handlers above a CAC volume must store data in China. Article 41: no giving China-held data to foreign courts or police without approval. March 2024 Provisions: above 1,000,000 individuals (non-sensitive) or 10,000 (sensitive) needs a security assessment. 100,000 to 1,000,000 needs a standard contract or certification. Under 100,000 non-sensitive since 1 January is exempt, with notice, consent and impact assessment still required.	in_force. PIPL effective 1 Nov 2021. Provisions issued 22 Mar 2024, effective on publication.	Not checked. The generative AI service rules are outside this table.	Serious violations: up to RMB 50,000,000 or 5% of prior-year business income, plus suspension of operations (Article 66).	unofficial_translation: PIPL, China Law Translate. law_firm_summary: Han Kun on the March 2024 Provisions.
Singapore	Personal Data Protection Act 2012 (PDPA). Regulator: PDPC	Section 26: an organisation must not transfer personal data outside Singapore except as the regulations allow, and the regulations must ensure the data gets protection comparable to the Act. The PDPC may exempt an organisation on application.	in_force. Page shows no version date.	PDPC Advisory Guidelines on use of personal data in AI recommendation and decision systems, published 1 Mar 2024. Third-party AI developers may count as data intermediaries.	Not checked.	primary_law: PDPA 2012 section 26, Singapore Statutes Online. law_firm_summary: Rajah & Tann, 4 Mar 2024.

Place	Law and regulator	Rule on sending personal data abroad	Status	AI-specific guidance	Penalty headline	Source type and links
Taiwan	Personal Data Protection Act (PDPA). Regulator: moving to a new Personal Data Protection Commission	Article 21 lets the authority restrict international transfer. The 2025 amendment moves that power from industry authorities to the new Commission. The wording of the restriction itself was not read.	passed_not_effective. Amendment promulgated 11 Nov 2025 and the effective date is set by the Executive Yuan, not yet set as of 13 Jan 2026. Baker McKenzie (29 Oct 2025) reported passage on 17 Oct 2025.	Not checked.	Breach-report failure: NT$20,000 to NT$200,000. Security-measure failures: NT$20,000 to NT$2,000,000, plus NT$150,000 to NT$15,000,000 for each failure to fix.	law_firm_summary: Baker McKenzie, 29 Oct 2025, K&L Gates, 13 Jan 2026.

Financial-sector regulator pages (opened 2026-10-18)

The table above is about the law on personal data. These pages are what a bank or insurer's own regulator says about AI. Each was opened and read on 18 October 2026 after Gemini Round 3 pointed to it. They support the regulator-question situation in Q5. They are not a full list of financial rules for the four places.

Place	Regulator and page	What the page shows	Status	Source type and link
Hong Kong	HKMA, "ART" Framework press release, 15 October 2026	Announces updated supervisory guidance, a training data sharing platform and a coming discussion paper on agentic AI. Copyright "© 2026 Hong Kong Monetary Authority. All rights reserved." Cite only, do not copy	Opened, read	regulator_page: HKMA press release, 15 Oct 2026

Place	Regulator and page	What the page shows	Status	Source type and link
Australia	APRA, Prudential Practice Guide CPG 230 Operational Risk Management, June 2024	Guidance and not the binding standard, which is CPS 230. Notice of an incident within 72 hours. Licensed CC BY 3.0 Australia	Opened, read	regulator_page: APRA CPG 230
Singapore	MAS, FEAT principles (Fairness, Ethics, Accountability, Transparency)	Published 12 November 2018 and updated 7 February 2019. Whether the principles bind is not stated on the page	Opened, read	regulator_page: MAS FEAT
Hong Kong	PCPD, AI Model Personal Data Protection Framework (PDF)	Our page reader returned no text from the PDF	Found, not read	regulator_page, unverified. Open it in a browser

Taiwan (FSC) has no regulator page yet, and Australia is not one of the four places in the table above, so APRA is a cross-check on the kind of rule a bank sees and not part of the four-place comparison.

Checks an organisation can ask before choosing a provider

These are questions, not legal conclusions. They connect the rules above to the provider table in Search A.

1. **Does the prompt contain personal data?** If staff only send non-personal text, the transfer rules in this table mostly do not apply. If they send customer or staff data, they do.
2. **Which place's law governs the data?** Mainland data faces the PIPL volume thresholds. Hong Kong has no transfer limit in force but the PCPD expects due diligence. Singapore needs comparable protection abroad. Taiwan's rule is changing.
3. **Where does the provider store and process it?** Use the storage column in Search A. A Singapore server is a storage fact, not a legal-jurisdiction fact.

4. **What does the contract say about training and retention?** Use the training and retention columns in Search A. A contract can close a gap that the law leaves open.
5. **Is there a written internal policy?** The PCPD checklist asks organisations to say which AI tools are allowed and what data may go in.

Caveats

- **Most sources here are law-firm summaries.** Only Singapore section 26 and the China Law Translate PIPL text are close to the law itself, and the PIPL text is an unofficial crowdsourced translation with no date shown.
- **PCPD pages could not be read.** The PCPD AI page, the 31 March 2025 press release and the guidance list returned empty text through my page reader. I did not try another way around that. Their addresses are in the reference list as found-not-read.
- **Two official sites blocked reading.** Taiwan's law database and Singapore's PDPC site refuse automated readers, so I did not read them. Taiwan Article 21's wording and the PDPC guideline text are therefore not verified from the source.
- **Blog claims are weaker.** The UPPERSETUP post is an individual's blog. Use it only for the 2026 "no bill on section 33" point and confirm with the PCPD.
- **Not covered.** China's generative AI service rules, Taiwan's financial-sector rules, sector rules for health, Macau, and penalty detail for Singapore. Hong Kong, Singapore and Australia bank-regulator pages are in the section above and are only the pages Gemini Round 3 pointed us to.
- **Dates move.** Taiwan's effective date was still open on 13 January 2026. Check again before submission.

References (opened 2026-10-16 unless marked)

Opened and read

1. Bird & Bird, Hong Kong PCPD model contractual clauses (2022): https://twobirds.com/en/insights/2022/china/hong-kong-pcpd-puts-forward-recommended-model-contractual-clauses
2. DLA Piper, Data protection in Hong Kong (last modified 2026-03-08): https://www.dlapiperdataprotection.com/index.html?c=HK
3. Lewis Silkin, Implementing gen AI guidelines in Hong Kong (2025-05-06): https://www.lewissilkin.com/insights/2025/05/06/hrs-data-strategy-implementing-gen-ai-guidelines-in-hong-kong

4. UPPERSETUP, PDPO Cap. 486 in 2026 (2026-09-01, first 100,000 characters read): https://uppersetup.com/en/blog/pdpo-cap-486-in-2026-the-reform-that-never-came-and
5. China Law Translate, PIPL (unofficial translation): https://www.chinalawtranslate.com/en/Personal-Information-Protection-Law/
6. Han Kun, March 2024 cross-border provisions: https://www.hankunlaw.com/en/portal/article/index/cid/8/id/14070.html
7. Singapore Statutes Online, PDPA 2012 section 26: https://sso.agc.gov.sg/Act/PDPA2012?ProvIds=pr26-
8. Rajah & Tann, PDPC AI guidelines (2024-03-04): https://www.rajahtannasia.com/viewpoints/pdpc-issues-advisory-guidelines-on-use-of-personal-data-in-ai-recommendation-and-decision-systems/
9. Baker McKenzie, Taiwan PDPA amendment (2025-10-29): https://www.bakermckenzie.com/en/insight/publications/alerts/2025/10/taiwan-amendment-to-personal-data-protection-act
10. K&L Gates, Taiwan PDPA developments (2026-01-13): https://www.klgates.com/New-Developments-in-the-Taiwan-Personal-Data-Protection-Act-1-13-2026

Found but not read (page text came back empty or was blocked)

11. PCPD, AI Privacy Protection page: https://www.pcpd.org.hk/english/artificial_intelligence/index.html
12. PCPD, press release on the generative AI employee checklist: https://www.pcpd.org.hk/english/news_events/media_statements/press_20250331.html
13. PCPD, Guidance on Recommended Model Contractual Clauses (PDF): https://www.pcpd.org.hk/english/resources_centre/publications/files/guidance_model_contractual_clauses.pdf
14. Taiwan Ministry of Justice, Personal Data Protection Act (blocked to automated readers): https://www.law.moj.gov.tw/ENG/LawClass/LawAll.aspx?pcode=I0050021
15. Singapore PDPC, Advisory Guidelines on AI (blocked to automated readers): https://www.pdpc.gov.sg/guidelines-and-consultation/2024/03/advisory-guidelines-on-use-of-personal-data-in-ai-recommendation-and-decision-systems